

STATE OF MICHIGAN
IN THE 40TH JUDICIAL DISTRICT COURT

THE PEOPLE OF THE STATE OF MICHIGAN,

v.

Case No. 19-1426SC FY

DAVID MATTHEW BISHOP,

Defendant.

PRELIMINARY EXAMINATION

BEFORE THE HONORABLE MARK FRATARCANGELI, DISTRICT JUDGE

St. Clair Shores, Michigan - Thursday, November 5, 2020

APPEARANCES:

For the People:

PATRICK COLETTA (P74148)
Macomb County Prosecutor's Office
One south Main Street
Mt. Clemens, MI 48043
(586) 469-5350

For the Defendant:

NICHOLAS SOMBERG (P80416)
31700 Telegraph Road, Suite 210
Bingham Farms, MI 48025
(248) 270-5979

Recorded by:

MICHELLE MALTAGLIATI, CER 6960
Certified Electronic Recorder
(586) 445-5383

TABLE OF CONTENTS

<u>WITNESSES: PEOPLE</u>	PAGE
VITO MANZELLA	
Direct examination by Mr. Coletta	5
Cross-examination by Mr. Somberg	15
Redirect examination by Mr. Coletta	20
Recross-examination by Mr. Somberg	21
<u>EXHIBITS:</u>	
NONE	

1 St. Clair Shores, Michigan

2 Thursday, November 5, 2020 - 1:38 p.m.

3 THE COURT: Good afternoon. We are on the record in
4 the case of People v. Bishop. Counselors, identify yourself
5 for the record.

6 MR. COLETTA: Thank you, your Honor, Patrick Coletta
7 for the people.

8 MR. SOMBERG: Good afternoon, your Honor, Nicholas
9 Somberg on behalf of David Bishop who's present by Zoom video,
10 and we consent to this matter being heard today by Zoom video.

11 THE COURT: Good afternoon, gentlemen, this is the
12 date and time set for preliminary examination, the people
13 ready to proceed?

14 MR. COLETTA: Yes, your Honor.

15 THE COURT: Defense is ready to proceed?

16 MR. SOMBERG: Defense is ready, your Honor.

17 THE COURT: Any preliminary motions before we begin?

18 MR. COLETTA: No, your Honor. I intend to produce one
19 witness today, so there's nobody to sequester.

20 THE COURT: Okay. Well, let's get that first witness
21 on in. You may call your first witness.

22 MR. COLETTA: Vito Manzella is my witness. I
23 understand he's in the waiting room.

24 THE COURT: All right, we'll bring him right in. Mr.
25 Manzella, welcome. How are you today?

1 MR. MANZELLA: Very good. How are you?

2 THE COURT: Good. I didn't know you were the witness
3 this morning. Just for the sake of full disclosure, Mr.
4 Manzella is not only a friend of mine, he's also a court
5 officer here in the 40th District Court. I had no idea that he
6 was the witness. I apologize for not bringing it to your
7 attention beforehand. Is there any objection for me hearing
8 the preliminary examination based upon that disclosure?

9 MR. COLETTA: I have no objection, your Honor. This
10 matter was previously in the 41B District Court and the judges
11 there recused themselves and it was reassigned to this Court.
12 I'm comfortable going forward.

13 THE COURT: Counselor for defense, any objection to
14 me proceeding in this matter?

15 MR. SOMBERG: What Mr. Coletta said is accurate. It
16 may be hard to find a judge who doesn't know Mr. Manzella.

17 THE COURT: Right, right.

18 MR. SOMBERG: In the jurisdiction. I'm okay with it.
19 David are you okay? This is just to establish probable cause
20 and get some testimony on the record today. Are you okay with
21 going forward with this judge?

22 THE DEFENDANT: Yes.

23 THE COURT: All right, that sounds good. Thanks,
24 guys, I appreciate the, at least understanding in working
25 through this issue. We can get the witness sworn and we can

1 begin our exam. Mr. Manzella, raise your right hand. Do you
2 solemnly swear to tell the truth, the whole truth and nothing
3 but the truth?

4 MR. MANZELLA: Yes, your Honor, I do.

5 THE COURT: Counselor, you may begin your
6 questioning.

7 MR. COLETTA: Thank you.

8 VITO MANZELLA

9 (Called as a witness at 1:39 p.m., testified as follows)

10 DIRECT EXAMINATION

11 BY MR. COLETTA:

12 Q Sir, please introduce yourself.

13 A I'm Vito Manzella, I'm a court officer.

14 Q And, officer Manzella, I'm going to ask you about some things
15 that happened on April 25th of 2019. Do you also, for lack of a
16 better way to put it, moonlight with any other kind of job?

17 A Yes, I do. I have -- I do services, process serving for
18 attorneys.

19 Q And does that include sometimes serving divorce papers as
20 well?

21 A Yes.

22 Q And were you hired on or about April 25, 2019, to undertake
23 the service of any papers?

24 A Yes, I was.

25 Q And specifically who were you hired -- and were these divorce

1 papers?

2 A They were divorce papers, yes.

3 Q And, who were you hired to serve those divorce papers on?

4 A To this gentleman here, David Bishop.

5 Q And you said that this gentleman here, do you see somebody you
6 know as David Bishop participating in this Zoom call?

7 A Yes, I do.

8 Q And if you look, sir, there are a number of cells for lack of
9 a better way to put it, that all of us who are participating
10 in the call are each occupying individually. In the bottom
11 left of each one of those cells that are identified, mine says
12 Patrick Coletta, yours says Vito Manzella, what does the cell
13 identifier say for the person that you've referenced as Mr.
14 Bishop?

15 A David Bishop.

16 MR. COLETTA: Okay, very good. Identifying defendant
17 Bishop for the record, Judge.

18 THE COURT: Record shall so reflect.

19 (At 1:43 p.m., witness identified defendant)

20 MR. COLETTA: Thank you.

21 MR. SOMBERG: No objection.

22 MR. COLETTA: Thank you.

23 BY MR. COLETTA:

24 Q Did you have any contact with Mr. Bishop back on April 25,
25 2019?

1 A Yes, I did. There's, you know, a version to the whole story if
2 you want to hear it -- if you'd like me to tell the whole
3 story.

4 Q We'll get into that. For now, the answer you have given is
5 good. And where is it that you ended up having contact with
6 Mr. Bishop?

7 A At his and his wife's home.

8 Q Is that in Clinton Township, Michigan?

9 A Yes.

10 Q What time of day or night was it if you recall?

11 A It was probably in the evening.

12 Q And how did you come to find yourself at the home of Mr.
13 Bishop and his wife at the time?

14 A At the time one of my friend's Jamie Moldenhauer was trying to
15 process service David and David was avoiding him. So, the
16 attorney that I was working for, Dale Ihrie, called and said
17 that they would like for us to serve him at his house and that
18 his wife would be there to let us in.

19 Q Are you familiar with somebody name Dana Bishop?

20 A That's his wife or ex-wife, yeah.

21 Q And when we get to April 25, 2019, with this understanding
22 that you had of what you were being asked to do, explain to
23 the Court please, sir, how it works. Did you -- what did you
24 do first to get over to that house?

25 A First thing is I got Dana's number and I called her, because I

1 didn't want Jamie to have any problems, I said Dana does David
2 have any weapons, and she stated yes, he does. So, at that
3 point I said okay well I'm going to come there myself and I
4 called Jamie, I said meet me down the street, bring your
5 paperwork and Dana met us and we got -- I got the divorce
6 papers.

7 Q Dana Bishop meets you where?

8 A Down the block.

9 Q Down the block from her house?

10 A Yes.

11 Q And incidentally how are you dressed on this day?

12 A I got -- I had my badge, I had my shirt and I got -- like
13 this.

14 Q So, as we're looking at you now that's how you were dressed
15 back on April 25th when you make arrangements to go to this
16 house?

17 A Yes.

18 THE COURT: Mr. Coletta, would you mind just
19 describing that for the record what he's wearing?

20 MR. COLETTA: Oh, sure.

21 BY MR. COLETTA:

22 Q And for purposes of the record, sir, you're wearing a blue
23 collar shirt and it has, what looks to be State of Michigan
24 patches on the upper arms and you're also wearing a badge, and
25 you had showed us a baseball hat that appeared to have some

1 sort of state seal on it as well; is that correct?

2 A Michigan District Court Officer.

3 Q Very good. And do the patches indicate the same thing?

4 A Yes.

5 Q They say Michigan Court Officer on them as well?

6 A Yes.

7 Q Very good thank you. Thank you, Judge. And, sir, you said that

8 you met Dana Bishop, you said down the block from this house,

9 what happens after you met her down the block from this house?

10 A I get the paperwork and we discuss, you know, how we're going

11 to get to the house. She stated that the front door is

12 probably going to be locked, but we can get through the garage

13 and go through the back door. So, basically that's what we

14 did.

15 Q And so, you eventually make your way to the house with Mrs.

16 Bishop; is that right?

17 A Yes.

18 Q And what happens when you get to the actual house itself?

19 A We get to the house and the front door was locked or

20 barricaded, I don't know, so we get -- she opened the garage

21 door and we go through the back door and when we walked in

22 through the back door the music was very loud, the house was

23 in shambles. She said she hasn't been there for a few days, so

24 I says okay, she says he's probably in the basement.

25 Q What did you do after she said he's probably in the basement?

1 A I told her to, you know, to get behind me, get behind me, and
2 the attorney said if he goes behind a door just slide the
3 papers underneath the door. And so, that's what I was, you
4 know, we were going down the stairs. So, she's behind me --
5 Q Why did you ask Mrs. Bishop to get behind you when you're
6 going down the stairs?
7 A I was just worried about her safety; I wanted to make sure she
8 didn't get hurt.
9 Q So, you're going down the stairs with Mrs. Bishop behind you
10 and what happens after that?
11 A So we get down the stairs and the music was loud, and I see
12 that there was a door shutting, so she says he's going in that
13 room, she said the bathroom if I'm not mistaken. So, I said
14 okay, so as I'm going to the door I slide the papers in, as
15 I'm sliding the papers in David jumps out of the door and he
16 puts a weapon, looked like a semi-automatic weapon between my
17 head, right here.
18 Q Did he have a handgun?
19 A Yes, a handgun.
20 Q And for purposes of the record, you were holding up your hand
21 as though it were a gun and pointing your finger between your
22 eyes; is that correct?
23 A Yes, that's correct. So, as I'm --
24 Q I'm going to stop you real quick, Officer Manzella. When
25 you're going down the stairs are you saying anything?

1 A Yes, I'm identifying myself.

2 Q And how are you identifying yourself?

3 A This is court-officer Vito Manzella. David, I have court
4 papers -- divorce papers. I was screaming that as loud as I
5 could as we were walking down the steps.

6 Q So you're not whispering or anything like that?

7 A No, no.

8 Q You're shouting it out loud; is that right?

9 A Yeah, yes.

10 Q And so we're shouting, we're showing, Officer Manzella I have
11 papers whatever it is that you said --

12 A Divorce papers.

13 Q And you're going down the stairs, and then you see this door
14 close, and then what do you do after you see this door close,
15 can you remind me?

16 A I was instructed to slide the papers underneath the door.

17 Q And then that's when you described the door opening and the
18 defendant coming out; is that correct?

19 A He came out, yes.

20 Q And after he -- let me ask you this, have you seen guns
21 before? Do you have experience with guns?

22 A Yes.

23 Q Was there any question in your mind that what this defendant
24 put between your eyes was a gun?

25 A It was a gun, yes.

1 Q And did it actually make contact with you or was he just
2 holding it in front of your face?

3 A No, no it made contact with me.

4 Q The muzzle of the gun made contact with your head; is that
5 right?

6 A Yeah.

7 Q And is -- are you saying anything or is the defendant saying
8 anything when this is going on?

9 A The only thing I said was, I said run for his wife to run.
10 Then as he came out and the gun was in my head, I was like
11 hey, David, calm down, you know their divorce papers, and I
12 started tilting my head. When I tilted my head I had an
13 opportunity to grab the weapon, which I did.

14 Q Okay.

15 A So I grabbed the weapon and, you know, I had my weapon, but I
16 couldn't reach for mine, because he's taller, he's heavier
17 than what he was now, he was overpowering me. As he's
18 overpowering me I had to use my other hand to get leverage. As
19 I got leverage I noticed that two of his little kids were
20 running around in the basement crying, so I was thinking to
21 myself, God for bid this thing goes off, so I try to push him
22 up against the wall. At that point he got loose, he got away
23 from me.

24 Q Okay. And while this is -- let me stop you real quick,
25 officer. When this is going on you mention there are a couple

1 kids in the basement too that you saw, were you worried for
2 your safety or anybody else's safety at this point?

3 A I was worried for everybody's safety. My safety, the kids
4 safety. I mean, like I said the barrel was pointing as we were
5 turning around it was pointing any place he could go.

6 Q Were you afraid you might end up getting shot?

7 A Myself or the kids, yeah.

8 Q So, you're struggling for this gun, you said that the
9 defendant begins to overpower you, what happens next?

10 A He overpowered me, he got away, and he put the gun to my
11 temple. Once he went towards my temple my glasses slipped off,
12 but I grabbed the gun again and we were struggling with the
13 gun. So, he after, you know, struggling for a while he's like
14 you know just get out, just get out. I said okay, David, I
15 says, fine, just calm down, give me my glasses and we'll go --
16 I'll go. So, he got my glasses, the gun was pointing to me as
17 he picked up my glasses. As I was going up the steps, he has
18 the gun -- the gun's in my back. So, as we're going up to the
19 back I'm thinking about, you know what's going to happen with
20 these kids and stuff, I don't know. So as we were going up the
21 steps the door opens, the back door and I happen to grab his
22 hand and I stood by the hand by the door, thinking I was going
23 to slam the door shut and get the gun out of his hands, but
24 his head was sticking out, so the door hit his head.

25 Q Okay. Instead of hitting his hand or the gun it hit him in the

1 head?

2 A Yeah. He got away again and locked the door. So, I walked to
3 the car where his wife was at and she said I got the police
4 are coming. As the police are coming, I noticed the front door
5 open, I heard noise by the front door and I noticed it opened,
6 and I see him coming out with something in his hand. So, I
7 don't know if he seen me.

8 Q I'm going to stop you real quick. You mentioned, you said a
9 front door opened, is that the same door that you went out of
10 that you locked behind you or is this a different door?

11 A It was the back door I came out of.

12 Q I see. Is that the one you described as being in the garage
13 earlier?

14 A Yes. The garage door in the back, yeah.

15 Q Gotcha.

16 A He came out of the front door. I heard the door open; I see
17 somebody come out of there, coming out the porch shall we say,
18 towards the car, her car. So, I don't think he seen me. So, as
19 he was coming to the car I came up and I hit him and then when
20 I hit him, I got him to the ground and the police came and
21 that was it.

22 Q You held him to the police got there?

23 A They were right there. As soon as I hit him the police came,
24 boom that was it.

25 Q Do you know -- you said he had something in his hand, could

1 you tell what it was?

2 A After I hit him it was a phone.

3 Q Oh, okay.

4 A When he was coming out, I didn't know what it was.

5 Q Turned out to be a phone at that time?

6 A Yeah.

7 Q And now you mentioned when the defendant first comes out of
8 this room behind this closed door in the basement, you said
9 you tell Dana Bishop to run; is that right?

10 A Yeah.

11 Q Is that at the same time as Mr. Bishop is pointing this gun at
12 you, or is it before, or is it after?

13 A No, as soon as he put the gun to my head, I said run.

14 MR. COLETTA: Okay, all right. And gosh, Officer
15 Manzella, I think that's all I have for you. I'm sure that Mr.
16 Somberg has some questions, but I'm done. Thank you.

17 THE WITNESS: Thank you.

18 THE COURT: Mr. Somberg, do you have any questions of
19 the witness?

20 MR. COLETTA: You're still muted, Mr. Somberg.

21 MR. SOMBERG: Sorry. Yes, your Honor. Thank you.

22 CROSS-EXAMINATION

23 BY MR. SOMBERG:

24 Q Mr. Manzella, so are you a peace officer or just a court
25 officer?

1 A Well, I've been told they're both the same thing, but I am a
2 certified court officer, yes.

3 Q You're not a police officer; correct?

4 A Oh, no. No.

5 Q And at the time you said that you -- so you were not
6 originally on this case and then I guess somebody else named
7 Jamie called you to help him?

8 A Jamie was having a hard time serving him, then the attorneys -
9 - the attorney that I work for, Dale Ihrie called and said,
10 you know, we can serve him at his house.

11 Q And before you spoke to Dale Ihrie -- so it was Dale Ihrie who
12 directed you to serve him at -- to serve Mr. Bishop at his
13 house?

14 A He said they talked to his wife Dana and she's going to go
15 there, she hasn't been there for a few days and she's going
16 to, you know, she's going to come into the house with us.

17 THE COURT: Mr. Manzella, if you can answer yes or no
18 to the attorney's questions it will go a lot smoother. He
19 knows the questions.

20 MR. MANZELLA: Yes, your Honor.

21 THE COURT: So, if it's a yes or no answer just give
22 a yes or no, okay?

23 MR. MANZELLA: Okay. Could you repeat that again,
24 please?

25 BY MR. SOMBERG:

1 Q The question was, was it Dale Ihrle who told you to serve
2 David Bishop inside of his house?

3 A Yes.

4 Q And at that time, just for the record, Mr. Bishop is still
5 married to his wife?

6 A Yes.

7 Q Did you -- have you ever served somebody inside their house?

8 A Yes.

9 Q Had you called or tried to contact Mr. Bishop before this?

10 A No.

11 Q Beforehand?

12 A No.

13 Q Had you ever met Mr. Bishop beforehand or face-to-face?

14 A No.

15 Q So this incident is the first time he had seen you; correct?

16 A Yes.

17 Q Is it, just to be clear for the record, when you say on your
18 direct testimony, you said you planned to go in through the
19 back door, is that you and Jamie or who is we?

20 A Me and Dana his wife.

21 Q Dana, okay. And Dana didn't have a key to the front door?

22 A I don't know.

23 Q You don't know, that's okay. You said when you walked in -- so
24 you came in through the back door of the house; correct?

25 A Yes.

1 Q You said there was very loud music; correct?

2 A Yes.

3 Q Do you know was this music -- is this a two-story house or a
4 ranch?

5 A I believe a ranch.

6 Q And was the music coming from upstairs or downstairs?

7 A I don't remember.

8 Q But you remember that there was loud music on; right?

9 A Yeah, loud music. Yeah.

10 Q You testified on direct that this was in the evening; are you
11 able to narrow down, was it dark out, was it getting dark out?

12 A I don't think it was dark out yet, no.

13 Q Now, while you're going down the stairs was that music still
14 loud?

15 A Yes.

16 Q And when you went down there, you said that you told -- you
17 knew that Mr. Bishop had -- was in possession of a gun?

18 A Yes, I was told that. Yes.

19 Q Are you told that he owned a gun or that he had a gun? What
20 was it?

21 A I asked is there any weapons -- does he have any weapons and
22 she said yes.

23 Q And you learned that before you walked into the house?

24 A Yes.

25 Q Do you typically serve court papers with the other party with

1 you?

2 A Yes.

3 MR. COLETTA: I'm going to object to relevance,
4 Judge. I don't see how that has any barring on the allegations
5 on this case.

6 THE COURT: I'll take the answer. He said yes.

7 BY MR. SOMBERG:

8 Q You told her to get behind you, is that because you
9 anticipated that there may be a dangerous situation?

10 A Just precaution that's all.

11 Q Precaution because you were told this person had a gun;
12 correct?

13 A A weapon.

14 Q A weapon. You said you could slide papers under the door; what
15 do you mean, don't you have to hand people the paper?

16 A I was instructed to slide it underneath the door, but yes you
17 do have to personally serve, yes.

18 Q Did you know David was in the basement before you went down
19 there?

20 A No, Dana told me he was in the basement.

21 Q So, I mean you could have left the papers at the top of the
22 basement stairs?

23 A Yeah, I could of, yes.

24 Q One second. At what time did you see the children present?

25 A Two of them were in the basement after we started struggling.

1 I seen two of them.

2 Q You didn't see them before the struggle?

3 A No.

4 Q Were you carrying a firearm?

5 A Yes.

6 Q And where did you have that? Was it concealed or do you have
7 it open on your belt?

8 A No, concealed. Yeah, it's concealed.

9 Q And you pull that firearm as well?

10 A No.

11 MR. SOMBERG: I no further questions of this witness.

12 THE COURT: Any follow up, Mr. Coletta?

13 MR. COLETTA: Just briefly.

14 REDIRECT EXAMINATION

15 BY MR. COLETTA:

16 Q So I understand, you mentioned that you saw two children in
17 the basement once you began struggling, did you see any other
18 children at the home?

19 A Upstairs --

20 Q How many additional, I'm sorry?

21 A I believe there was two more upstairs.

22 Q Did you see them prior to any other struggle had ensued or was
23 that after the fact?

24 A No, after the fact.

25 Q Got it.

1 A After.

2 MR. COLETTA: I just want to make sure the records
3 clear. Thank you, I have nothing else.

4 MR. SOMBERG: I have a quick question about the
5 entering of the home.

6 THE COURT: Okay, go ahead.

7 RECROSS-EXAMINATION

8 BY MR. SOMBERG:

9 Q Mr. Manzella, who opened the back door?

10 A Dana.

11 Q She had a key to do that?

12 A I don't know. You know, I don't know what she did, but she
13 opened the door.

14 MR. SOMBERG: I have no further questions.

15 THE COURT: All right, Mr. Manzella, I don't have any
16 questions of you. Thank you very much for your time today.
17 We're going to excuse you now.

18 THE WITNESS: Thank you, your Honor. Thank you, guys.

19 (At 2:03 p.m., witness excused)

20 THE COURT: No additional witnesses on behalf of the
21 prosecution?

22 MR. COLETTA: No additional witnesses at this time,
23 Judge. That concludes my presentation of evidence.

24 THE COURT: Any witnesses on behalf of the defense?

25 MR. SOMBERG: We're not going to call any witnesses,

1 your Honor. Thank you.

2 THE COURT: Motion by the prosecution?

3 MR. COLETTA: Your Honor, I move to bind over the
4 defendant as charged in the amended complaint. He's charged
5 with assault with a dangerous weapon and felony firearm. I
6 think at this point and time for purposes of this hearing, the
7 evidence kind of speaks for itself. I reserve any further
8 argument.

9 THE COURT: Any argument on behalf of the defense?

10 MR. SOMBERG: Your Honor, I ask this Court to not
11 bind this case over. I would say, your Honor, that the castle
12 doctrine would apply in this case, that Mr. Bishop had no duty
13 to retreat, that he was in his dwelling. There's testimony
14 that this man, I'm sorry, Mr. Manzella entered his home
15 without the defendant's knowledge. That he went downstairs,
16 and he essentially surprised him in his own home. Mr. Bishop
17 has a right to defend himself, he has a right to not retreat,
18 this is People v. (in audible), your Honor, for the Court's
19 knowledge. And that the testimony was based that he acted in
20 self-defense, he didn't seek out Mr. Manzella, Mr. Manzella's
21 in his house, in the basement, in the evening, with a firearm.
22 Your Honor, I think that there is a strong case of self-
23 defense here and for this case not to be bound over.

24 THE COURT: Any response, Mr. Coletta?

25 MR. COLETTA: Self-defense is an affirmative defense,

1 Judge. There's been no evidence on this record to support any
2 claims of self-defense at this point and time. And, Judge, a
3 person doesn't have a right to make crimes in their own home,
4 just because it's their own home. The evidence you have today
5 should supports bind over, whether there's any additional
6 evidence at trial presented by the defense that might support
7 self-defense is something that a trier of fact would certainly
8 be able to consider.

9 THE COURT: The Court does agree that would be a
10 question of fact best left for the trier of fact in this
11 particular matter. The Court's listened to the testimony of
12 Mr. Manzella and does find there's probable cause to believe
13 that the offense of assault with a dangerous weapon did occur
14 here -- I'm sorry in the city of Clinton Township, county of
15 Macomb, state of Michigan. And also, that there was a firearm
16 that was used in the perpetuation of this crime. The testimony
17 specifically indicated that Mr. Manzella feared for his safety
18 as well as that of the safety of other based upon the conduct
19 of Mr. Bishop putting a firearm to his head on multiple
20 occasions, there's more than enough evidence to bind over for
21 further proceedings to the circuit court. So, we'll set the
22 circuit court arraignment and pretrial on both counts one and
23 two. And what is the date of the circuit court arraignment and
24 pretrial?

25 MR. COLETTA: And, your Honor, if you have

1 information about who the arraigning Judge -- oh I suppose it
2 would go back to the --

3 THE COURT: Judge Toia, I believe.

4 MR. COLETTA: Judge Toia. Judge Toia's arraignment
5 date -- your Honor, I apologize I'm going to have to ask you
6 for just one moment.

7 THE COURT: Not a problem. We can get you that date.
8 Mr. Somber, Mr. Coletta will get you that date with my
9 secretary, okay.

10 MR. SOMBERG: Thank you, your Honor.

11 THE COURT: You're all set. Just hold tight and we'll
12 find out the right date.

13 MR. COLETTA: Thank you, Judge.

14 THE COURT: Have a good day.

15 (At 2:07 p.m., proceedings concluded)
16
17
18
19
20
21
22
23
24
25

STATE OF MICHIGAN)

COUNTY OF MACOMB)

I certify that this transcript, consisting of 24 pages, is a complete, true, and correct transcript of the proceedings and testimony taken in this case on Thursday, November 5, 2020.

Dated: February 19, 2021

Michelle Maltagliati

Michelle Maltagliati, CER 6960
40th District Court
27701 Jefferson Avenue
St. Clair Shores, MI 48081
(586) 445-5383